

THE UNIVERSAL HOUSE OF JUSTICE

1982-08-02

Dear Bahá'í Friends,

to send you the following reply.

336.2 The House of Justice is very sorry to learn that the problems which you instance have become a threat to the unity of your Assembly, and it hopes and prays that this difficulty will quickly be overcome. It feels that there are a number of distinct but related principles which are involved in the situations you describe, and that the issues will become clearer if they are considered separately.

336.3 Every institution in the Faith has certain matters which it considers should be kept confidential, and any member who is privy to such confidential information is obliged to preserve the confidentiality within the institution where he learned it. Such matters, however, are but a small portion of the business of any Bahá'í institution. Most subjects dealt with are of common interest and can be discussed openly with anyone. Where no confidentiality is involved the institutions must strive to avoid the stifling atmosphere of secrecy; on the other hand, every believer must know that he can confide a personal problem to an institution of the Faith, with the assurance that knowledge of the matter will remain confidential.

336.4 Members of Assemblies, whether they are assistants or not, are obviously in a position to receive confidential information as individuals from several sources. It is an important principle of the Faith that one must not promise what one is not going to fulfil. Therefore, if a Bahá'í accepts confidential information either by virtue of his profession (e.g., as a doctor, a lawyer, etc.), or by permitting another person to confide in him, he is in duty bound to preserve that confidentiality.

336.5 In the relationship between assistants and the National Spiritual Assembly no problems should arise, because the functions are entirely separate. An assistant is appointed by an Auxiliary Board member to help him in a specified area of the territory and he functions as an assistant only in relation to that area. Assistants, like Auxiliary Board members, function individually, not as a consultative body. Assistants who are members of a National Assembly or a national committee do not function as assistants in relation to that body, and they have the same duty to observe the confidentiality of its consultations, and of matters considered by the Assembly to be confidential, as does any other member. An assistant can, of course, be a member of a Local Spiritual Assembly, but his task here as an assistant is to help the Spiritual Assembly to function harmoniously and efficiently in the discharge of its duties and this will hardly succeed if he gives the Assembly the feeling that he is reporting privately everything it does to the Auxiliary Board member. He should, on the contrary, do all he can to foster an atmosphere of warm and loving collaboration between the Local Assembly and the Board member.

336.6 In answer to your fourth question the House of Justice instructs us to say that an element of judgement is required in deciding what are and what are not "administrative" matters. Immoral actions of believers, for example, generally become subjects for administrative action only when they are blatant or flagrant, and reflect on the good name of

the Faith. If a believer turns to an assistant or Auxiliary Board member for advice on a personal matter it is for the assistant or Auxiliary Board member to decide whether he should advise the believer to turn to his Spiritual Assembly, whether he should himself give advice and, in either case, whether he should report the matter to the Counselors, or to the Local Assembly, which, of course, would depend upon the degree of confidentiality he had undertaken to observe. Likewise, it is for the Counselor to decide whether it is a matter of which the National Assembly should be informed. All this is, of course, within the general context that, apart from matters which ought to remain confidential, the more freely information is shared between the institutions of the Faith the better. 336.7 National Assembly members themselves must exercise such discretion, and it should be clear to the believers that they are not justified in assuming that because a matter is known to individual members of the Assembly it is therefore before the Assembly itself. If a believer wishes to bring a matter to the Assembly's attention he should do so explicitly and officially. If a member of the Assembly knows of a personal problem, and if he has not undertaken to keep it confidential, he may bring it to the Assembly's attention if he feels it would be in the interests of the Faith for him to do so, but he is not obliged to.

336.8 The House of Justice does not wish to elaborate these comments beyond the above, and believes that your Assembly will be able to answer the questions that you pose in the light of 441 these principles. The House of Justice will pray in the Holy Shrines for speedy strengthening of the unity of your Assembly and for the growth of closer collaboration between your body and the Board of Counselors.

With loving Bahá'í greetings, Department of the Secretariat 337 Message to the International Conference in Quito, Ecuador—6–8 August 1982

[signed: The Universal House of Justice]